REPORTABLE (35)

(1) VEVHU RESOURCES (PRIVATE) LIMITED (2) JOYCE KUCHERA (3) INNOCENT TITUS MUREFU (4) ANTONY DUBE
v
PERCY NYACHOWE

SUPREME COURT OF ZIMBABWE
HARARE: 11 MARCH 2026 & 29 MAY 2026

A. Chimhofu, for the applicants

T. Kabuya, for the respondent

IN CHAMBERS

MWAYERA JA:

1. This is a chamber application for leave to appeal to this Court. The application is made in terms of r 45(2) together with r 50 of the Supreme Court Rules, 2025, as read with s 43(2)(d) of the High Court Act [*Chapter 7:06*].

BACKGROUND FACTS

2. The applicants in this matter are Vevhu Resources (Pvt) Ltd (the first applicant), a land development company, and its three directors who are Joyce Kuchera (the second applicant), Innocent Titus Murefu (the third applicant), and Antony Dube (the fourth applicant). The respondent is Percy Nyachowe. The underlying dispute between the parties, which is the subject of ongoing trial proceedings in the High Court under case number HCHC 242/24, concerns the ownership and control of the first applicant company. The respondent initiated proceedings by way of summons, seeking an order declaring him a 50% shareholder and director of the first applicant, and consequentially seeking to nullify the directorship of the third and fourth applicants.

3. The matter was defended and proceeded to trial in the High Court, Commercial Division (the court a *quo*) under case number HCHC 242/24. During the trial, while the respondent (as plaintiff in the main matter) was leading his evidence, his legal practitioner sought to tender a computer-generated document, specifically an email, as evidence before the Court. The email in question was dated 31 March 2017, authored by one Misheck Muza, and was addressed to, among others, the respondent and the third applicant.

4. The applicants' legal practitioner raised an objection to the admission of a document into evidence. The objection was two-fold, first, that the document was an unauthenticated computer-generated evidence that failed to meet the strict admissibility requirements for such documents as set out in s 13 of the Civil Evidence Act [*Chapter 8:01*] ("Civil Evidence Act") and second, that as the respondent was not the author of the email, the document constituted hearsay evidence, the admission of which would contravene s 27 of the same Act. Both oral and written submissions were made by both parties on this objection.

5. On 14 July 2025, the court *a quo* delivered its written judgment, numbered HH 418/25, in which it dismissed the applicants' objection. In its ruling, the court *a quo* made a key finding that the respondent had indeed failed to comply with the procedural requirements of s 13 of the Civil Evidence Act when tendering the email. However, despite this finding, which was the very basis of the applicants' objection, the court *a quo* proceeded to dismiss the objection. It reasoned that the respondent could be granted a reprieve to remedy his procedural non-compliance and be allowed to re-apply to tender the document after following the correct process. The court *a quo* further referred to other provisions of the Civil Evidence Act, including ss 14 (business records), 19 (refreshing memory), and 50 (court's power to examine evidence), as justification for its decision to allow the respondent this chance to regularly seek tender of the document. The court *a quo* concluded that its

ruling did not mean the document was automatically admitted, but that the respondent was merely being given an opportunity to regularly seek the production of the document in evidence.

6. Aggrieved by this decision, the applicants sought leave to appeal the decision before the court *a quo* which was denied. They then approached this Court seeking leave to appeal based on the following intended grounds of appeal:

GROUNDS OF APPEAL

1. The court *a quo* erred and misdirected itself in dismissing appellants' objection to respondent's application to produce into evidence email document when the court accepted and found that respondent had not complied with the provisions of s 13 of the Civil Evidence Act regulating the production of such document.
2. A *fortiori*, by finding the admission of the document into evidence not complying with the law and yet proceeding to dismiss appellants' objection that the same document did not comply with the law, the court *a quo*'s judgement is irreconcilably contradictory and not supported by the law.
3. By *mero motu* seeking to accord respondent what it called a 'reprieve' to ensure compliance with s 13 of the Civil Evidence Act after the objection had already been taken and parties made submissions, the court *a quo* grossly misdirected itself in that it sought to and descended into the arena and gave impression of litigating on behalf of the respondent.
4. By referring to ss 14, 19 and 50 of the Civil Evidence Act *mero motu* the court *a quo* erred and misdirected itself in that it allowed its ultimate decision to be influenced by issues which had not been pleaded or argued by the parties.

RELIEF SOUGHT IN THIS APPLICATION

1. The application for leave to appeal against the interlocutory judgement of the High Court handed down under judgement number HH 418/25 dated 14 July 2025 be and is hereby granted.
2. The applicants shall file their appeal to this Court against the said judgement within 5 days from the date of this order as guided by the relevant Rules of the Supreme Court.
3. The respondent shall pay applicants' costs of suit.

SUBMISSIONS BY THE PARTIES

7. Mr *Chimhofu*, counsel for the applicants, submitted that the court *a quo*'s judgment is irreconcilably contradictory. He submitted that the court found that the respondent had not complied with s 13 of the Civil Evidence Act, the very basis of their objection, yet paradoxically dismissed that objection. He argued that such a judgment cannot be sustained. The applicants further submitted that the court grossly misdirected itself by granting the respondent a *mero motu* "reprieve" to remedy statutory non-compliance. He contended in the absence of any application, the court *a quo* descended into the arena and created an appearance of bias, violating the principle that justice must be seen to be done.

8. Counsel further argued that the court decided the matter on issues never pleaded, *mero motu* invoking ss 14, 19, and 50 of the Civil Evidence Act. He submitted that it is a fundamental misdirection to allow a decision to be influenced by extraneous matters not placed before the court. The applicants further contended that the ruling was dispositive, of the matter and thus the court *a quo* became *functus officio* upon dismissing the objection. He finally submitted that the court *a quo* could not simultaneously dismiss an objection and permit the respondent to reattempt admission of the same document. For these reasons, the

applicants submitted that the intended appeal enjoys reasonable prospects of success and as such leave to appeal should be granted.

9. In response, Mr *Kabuya*, counsel for the respondent submitted that this application is an impermissible piecemeal appeal against an interlocutory procedural ruling, which disrupts the ongoing trial and is contrary to the intended expeditious resolution of commercial disputes. Counsel contended that the ruling *a quo* is not dispositive of any substantive right. Further that the court did not admit the email into evidence but merely dismissed a premature objection, leaving admissibility open for the trial court to determine.

10. He further contended that there is no contradiction in the judgment. The court properly upheld the procedural objection in principle while permitting rectification of the defect, which is not irreconcilable. It was submitted that the court ruling sought to cure minor procedural lapses in the interests of justice, as litigation should not be a game of technical ambush. Counsel averred that the court was entitled to revert and apply the correct law, including ss 14, 19, and 50 of the Civil Evidence Act, as part of its evaluative reasoning, even if they were not cited by the parties. He contended that the court did not descend into the arena, as parties were invited to address the issue before directions were issued. He submitted that no prejudice to fair trial rights arises, as the document remains open to challenge and the applicants retain full rights to object. Finally, he argued that there was no good cause warranting the grant of the application which he described as an undesirable delaying tactic, to unterminated proceedings in circumstances where the applicants should have awaited a dispositive ruling before seeking to appeal.

THE LAW

11. In the case of *Mamombe & Anor* v *Mushure N.O. & Anor* CCZ 4/22 at p 4, the Court remarked:

> "**In a long line of cases from this jurisdiction and elsewhere, the admonition is repeatedly sounded and explained, that superior courts should be very slow in interfering with the unterminated proceedings of lower courts. The exception is made for cases where there is a gross irregularity or a wrong decision by the lower court that will seriously prejudice the rights of a litigant or accused person and which irregularity or wrong decision cannot be corrected by any other means**. (See *Attorney-General* v *Makamba* 2005 (2) ZLR 54 (S); *Rasher v Minister of Justice* 1930 TPD 810; *Ginsberg* v *Additional Magistrate of Cape Town* 1933 CPD 357; *Walhaus* v *Additional Magistrate, Johanesburg & Anor* 1959 (3) SA 113 (A); *Masedza & Others* v *Magistrate, Rusape and Others* 1998 (1) ZLR 36 (H); *Mantzaris v University of Durban -Westville &Others* (2000) 10 BLLR 1203 LC; *Rose v S* 02-HH-071; *Mutumwa and Anor* v *S* HH 104/08, *Chikusvu v Magistrate, Mahwe* HH100-15; *Chawira and Others* v *Minister, Justice, Legal and Parliamentary Affairs and Ors* CC 3/17 and *Shava* v *Magomere* HB 100-17)."

12. In this case, most importantly is the fact that, the applicants have failed to demonstrate the serious prejudice required to justify interfering with unterminated proceedings as *per* the principle coming out in *Mamombe & Anor* v *Mushure N.O. & Anor* (*supra*). The trial is ongoing. The email has not been admitted into evidence before the court *a quo*. The applicants will have a full opportunity to object again. They can cross-examine the respondent on the document and call their own evidence to challenge its authenticity or veracity. If the court *a quo* eventually errs in its final ruling on admissibility or in its assessment of the evidence, that is an error that can be corrected on appeal after the final judgment.

13. In *S* v *Dinha* CC-11-20, at p 6, the Court stated the following pertinent remarks:

> "In assessing the prospects of success, the Court is tasked with assessing whether the applicant has established a *prima facie* case which justifies that he be given a day in court. More is required to be established than that there is a mere possibility of success. An applicant must show on a balance of probabilities that he or she or it has reasonable prospects of success and in doing so he or she or it must point to some fault or misdirection in the judgment he or she or it seeks to impugn."

14. Further, in the case of *Zimbabwe Consolidated Diamond Company (Pvt) Ltd* v *Adelcraft Investments (Pvt) Ltd* CCZ 2/24, regarding prospects of success, the Court said at p 11 that:

> "The test for reasonable prospects of success postulates an objective and dispassionate decision, based on the facts and the applicable law, as to whether or not the applicant has an arguable case in the intended application should direct access be granted. The prospects of success must not be remote but must have a realistic chance of succeeding. In this respect, a mere possibility of success will not suffice. There must be a sound rational basis for the conclusion that there are prospects of success in the main matter. In short, this Court must be satisfied that the applicant has an arguable *prima facie* case and not a mere possibility of success. See *Essop* v *S* 2016 [ZASCA] 114; *S* v *Dinha* CCZ 11/20, at p 6."

15. The central enquiry in determining an application for leave to appeal is whether the applicants have demonstrated reasonable prospects of success on appeal in relation to the interlocutory ruling delivered by the court *a quo*. The applicable standard requires more than the mere possibility of success; the applicants must establish a *prima facie* arguable case showing that the impugned decision is attended by a material misdirection in fact or law.

APPLICATION OF THE LAW TO THE FACTS

16. A critical factor in this application, which the applicants have sought to downplay, is the precise nature of the ruling made by the court *a quo*. The court *a quo* did not admit the email into evidence. It explicitly stated that its ruling did not mean the document was automatically admitted, but that the respondent was merely being given an opportunity to properly apply for its admission. The learned Judge in the court *a quo* preserved the applicants' right to object anew once the respondent attempted to re-tender the document in compliance with the law. The admissibility or otherwise of the document and the issue of the probative value of the document remained unchartered or put simply at the time of seeking leave to appeal the email in issue is not part of evidence adduced in the court *a quo* .
17. In my view, the applicants' characterisation of the ruling as a final and dispositive admission of the document is incorrect. The ruling was purely procedural. It was a case

management decision designed to regulate the flow of evidence in an ongoing trial, and in making it, the court *a quo* was correctly guided by the imperative to achieve substantial justice between the parties. Rule 4(3) of the Commercial Court Rules, 2020 is instructive and it provides as follows:

> "(3) The court shall in administering these rules, have due regard to the set of values set out in the Second Schedule to these rules and the need to achieve substantial justice inter parties in any particular case without derogating from the principles of natural justice or established law and resolving the dispute timeously."

18. The above rule mandates the court to have due regard to the need to achieve substantial justice without derogating from established law, while ensuring the timeous resolution of the dispute. The court *a quo*'s decision to allow the respondent a reprieve to remedy a procedural defect, rather than shutting him out on a technicality, is a practical example of this principle in action. The court *a quo* found, in the applicants' favour, that the respondent had failed to comply with s 13 of the Civil Evidence Act, however, instead of ending the inquiry there, it correctly looked to the substance of the dispute. By dismissing the objection and permitting a procedural correction, the court *a quo* prioritised the truth-seeking function of the trial over the form in which the evidence was initially presented. This approach did not derogate from established law, as the requirements of s 13 of the Civil Evidence Act were not waived but merely accorded an opportunity to comply with the said requirements and the principles of natural justice were fully respected given that the applicants were heard on their objection and their rights to challenge the document were expressly preserved.

19. Furthermore, this course of action directly serves the commercial court rules mandate of timeous resolution of cases, as it prevents an interminable and protracted piecemeal appeal on an evidentiary side-issue and allows the trial to progress towards a final hearing on the

merits. The ruling did not finally determine the admissibility or, crucially, the probative value of the email, and the door was left open for the applicants to raise their objections, including those based on hearsay and authentication, once the respondent attempts to follow the proper channels under s 13 of the Civil Evidence Act.

20. The fact that the court *a quo* made no pronouncement on the probative value of the document is significant. The ultimate weight to be attached to the email, should it eventually be admitted, remains a matter for the trial judge to determine at the conclusion of the trial. The applicants have therefore failed to demonstrate that any substantive right has been finally determined or that they have suffered any irreparable harm at this point.

21. Turning to the specific grounds of appeal, I am not persuaded that they carry reasonable prospects of success.

22. In first and second grounds of appeal, the applicants argue that the judgment is irreconcilably contradictory because the court found non-compliance with s 13 of the Civil Evidence Act and yet he proceeded to dismiss their objection. This argument misses the nuance of the court a *quo*'s reasoning. The court *a quo* found a procedural defect. Its remedy was not to permanently exclude the evidence, which is a drastic measure at an interim stage, but to direct that the defect be cured. This is not a contradiction, it is an exercise of judicial case management to ensure that the trial determines the real issues between the parties on their merits, rather than on technical missteps. The court *a quo* upheld the substance of the applicants' objection that the procedure was wrong and declined the production of the email in an irregular manner. It proceeded to direct that the email could only be tendered procedurally, a remedy that would best serve the interests of justice.

23. The allegation in the third ground of appeal that the court *a quo* descended into the arena is a serious one, implying bias. However, a reading of the ruling does not support this contention. A court has an inherent *mero motu* power to regulate its own proceedings and to ensure that trials are conducted fairly and expeditiously. In exercising this power, a judge is not descending into the arena. The court *a quo* was faced with a situation where a party had attempted to tender evidence in a procedurally flawed manner. The court *a quo* identified the flaw and, in the interests of justice, indicated a path to remedy it. This is a legitimate exercise of judicial authority, not improper litigation on behalf of a party. The applicants have not pointed to any conduct suggesting the judge had abandoned his role as an impartial arbiter. This ground would be without merit.

24. In the fourth ground, the applicants challenge the court *a quo*'s reference to ss 14, 19, and 50 of the Civil Evidence Act. A reading of the ruling being sought to be impugned shows that reference to these sections was part of the court *a quo*'s obiter reasoning, explaining why it considered a flexible approach to be permissible under the broader framework of the Civil Evidence Act. It did not base its final decision on these sections. In *Muza* v *Saruchera & Ors* S 45/18, MAKARAU JA as she then was, emphasised that an appeal cannot succeed where it is directed solely at remarks made in passing rather than the actual basis upon which the decision was reached. In that judgment, the court made the following relevant remarks:

> "The appellant erred in noting an appeal against findings that were made by way of orbiter remarks. His error is however understandable in that he is a self-actor who could not discern between the ratio of the judgment and the other findings of the court *a quo* by way of *obiter*."

25. The court *a quo*'s decision was fundamentally anchored in the respondent's failure to comply with s 13 of the Civil Evidence Act, alongside the court's inherent jurisdiction to regulate its own proceedings. The court *a quo* did not admit the document into evidence.

A court is duty-bound to consider the broader statutory landscape to ensure a legally sound outcome (*jura novit curia* which translates to the court knows all), such a comprehensive application of the law does not equate to a decision based on issues not pleaded. Consequently, an appellate court is unlikely to find a material misdirection, as the court *a quo* acted within its powers to prioritize the legal truth over mere procedural form.

26. To grant leave to appeal now would be to sanction an impermissible piecemeal appeal. It would halt the trial, cause further delay, and potentially require this Court to opine on an evidentiary issue in a factual vacuum, without the benefit of a full trial record. This is precisely the mischief that the principle against interfering in unterminated proceedings is designed to prevent. The expeditious and just resolution of commercial disputes, as argued by the respondent, is a value this Court in befitting circumstances ought to uphold.

27. The applicants have failed to satisfy the threshold required for the grant of leave to appeal an interlocutory ruling in unterminated proceedings. They have not demonstrated, on a balance of probabilities, that an appeal against the interlocutory ruling would have reasonable prospects of success. Furthermore, they have failed to establish that the ruling constitutes a gross irregularity which has caused them serious prejudice that cannot be corrected in due course. The application is, in my view, a misguided attempt to delay the progress of a trial that must be allowed to run its course. The application for leave to appeal must fail since there is no good cause shown warranting the grant of the leave.

28. Regarding costs they generally follow the result. I find no reason to depart from the general standard.
29. In compliance with Rules 50 (7) and 67 of the Supreme Court Rules, 2025, the concurrence of two (2) judges with this judgment has been sought.

DISPOSTION

30. Accordingly, it is ordered that:

1. The application for leave to appeal against the interlocutory judgment of the High Court handed down under judgment number HH 418/25 dated 14 July 2025 be and is hereby dismissed.

2. The applicants shall pay the respondent's costs of this application.

CHITAKUNYE JA : I agree

ZHOU AJA : I agree

Rusinahama-Rabvukwa Attorneys, applicants' legal practitioners.

Matsikidze Attorneys, respondent's legal practitioners.